

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1243

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO THE IDAHO ONEPLAN; PROVIDING LEGISLATIVE INTENT; AMENDING SECTION 22-2717, IDAHO CODE, TO REMOVE A REFERENCE TO THE IDAHO ONEPLAN; AMENDING SECTION 22-2718, IDAHO CODE, TO REMOVE A PROVISION REGARDING THE IDAHO ONEPLAN; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. IDAHO CODE CLEANUP -- LEGISLATIVE INTENT. It is the intent of the Legislature to ensure that the state laws provided in Idaho Code are streamlined, up-to-date, and essential for the citizens of Idaho, while best serving the public health, safety, and welfare. In accordance with the Idaho Code Cleanup Act, following comprehensive review, the Legislature has identified the provisions of this act as obsolete, outdated, or unnecessary.

SECTION 2. That Section 22-2717, Idaho Code, be, and the same is hereby amended to read as follows:

22-2717. DEFINITIONS. Whenever used or referred to in this chapter, unless a different meaning clearly appears from the context:

(1) "Administrator" means the administrator for the Idaho state soil and water conservation commission.

(2) "Agency" includes the government of this state and any subdivision, agency, or instrumentality, corporate or otherwise, of the government of this state.

(3) "Agricultural pollution abatement plan" or "ag plan" means the document developed by the state soil and water conservation commission and approved by the commission and the department of environmental quality, that provides appropriate technical, programmatic, informational and educational processes, guidelines and policies for addressing agricultural pollution.

(4) "Best management practices" or "BMPs" means practices, techniques, or measures developed or identified by the designated agency and identified in the state water quality management plan which are determined to be a cost-effective and practicable means of preventing or reducing pollutants generated from nonpoint sources to a level compatible with water quality goals.

(5) "Commission" or "state soil and water conservation commission" means the agency created in section 22-2718, Idaho Code.

(6) "Conservation plan" means a description of identified natural resource issues and a specific schedule of implementation of component practices necessary to resolve those specific resource issues as agreed upon by the landowner.

(7) "Designated agency" is as defined in section 39-3602, Idaho Code.

1 (8) "District," "conservation district," "soil conservation dis-
 2 trict," or "soil and water conservation district" means a governmental
 3 subdivision(s) of this state, and a public body corporate and politic, orga-
 4 nized in accordance with the provisions of this chapter, for the purposes,
 5 with the powers and subject to the restrictions hereinafter set forth.

6 (9) "Due notice" means notice published at least twice, with an inter-
 7 val of at least seven (7) days between the two (2) publication dates, in a
 8 newspaper or other publication of general circulation within the appropri-
 9 ate area, or if no such publication of general circulation be available, by
 10 posting at a reasonable number of conspicuous places within the appropri-
 11 ate area, such posting to include, where possible, posting at public places
 12 where it may be customary to post notices concerning county or municipal af-
 13 fairs generally. At any hearing held pursuant to such notice, at the time and
 14 place designated in such notice, adjournment may be made from time to time
 15 without the necessity of renewing such notice for such adjournment dates.

16 (10) "Eligible applicant" means an individual agricultural owner, op-
 17 erator, partnership, corporation, conservation district, irrigation dis-
 18 trict, canal company or other agricultural or grazing interest.

19 (11) "Government" or "governmental" includes the government of this
 20 state, the government of the United States, and any subdivisions, agency, or
 21 instrumentality, corporate or otherwise, of either of them.

22 ~~(12) "Idaho OnePlan" means a computer-based system for improving effi-~~
 23 ~~ciency and effectiveness of natural resource planning by landowners and land~~
 24 ~~users.~~

25 ~~(13)~~ (12) "Landowner" or "owner" includes any person, firm, or corpora-
 26 tion who shall hold title to any lands lying within a district organized un-
 27 der the provisions of this chapter. A buyer on contract, who is the occupier
 28 of land, shall be construed as landowner.

29 ~~(14)~~ (13) "Land user" means any entity with a lease, permit or similar
 30 business agreement with a landowner to implement, manage or utilize such
 31 land for activities related to use of the land.

32 ~~(15)~~ (14) "Natural resources conservation service" or "NRCS" means the
 33 agency governed by the provisions of 16 U.S.C. sections 590a through 590d and
 34 590f.

35 ~~(16)~~ (15) "Nominating petition" means a petition filed under the provi-
 36 sions of section 22-2721, Idaho Code, to nominate candidates for the office
 37 of supervisor of a soil conservation district.

38 ~~(17)~~ (16) "Participant" means an individual agricultural owner, opera-
 39 tor, partnership, private corporation, conservation district, irrigation
 40 district, canal company, or other agricultural or grazing interest approved
 41 by the commission or an individual agricultural owner, operator, partner-
 42 ship, or private corporation approved for implementation of conservation
 43 improvements, projects, or the water quality program for agriculture.

44 ~~(18)~~ (17) "Project sponsor" means a conservation district, irrigation
 45 district, canal company, or other agricultural or grazing interest, as de-
 46 termined appropriate by the commission, that enters into a conservation im-
 47 provement or water quality project agreement with the commission.

48 ~~(19)~~ (18) "Qualified elector" means any person who is qualified to vote
 49 pursuant to the requirements of section 34-104, Idaho Code.

~~(20)~~ (19) "Riparian land" means the beds of streams, the adjacent vegetation communities and the land thereunder, which are predominately influenced by their association with water and are privately owned.

~~(21)~~ (20) "Specifications" means the materials, operations and procedures necessary to obtain the desired standards of construction and installation.

~~(22)~~ (21) "Standards" means the minimum limits of technical excellence of a component practice for its planning, design and construction.

~~(23)~~ (22) "State" means the state of Idaho.

~~(24)~~ (23) "Supervisor" means one (1) of the members of the governing body of a district elected or appointed in accordance with the provisions of this chapter.

~~(25)~~ (24) "Total maximum daily load" is as defined in section 39-3602, Idaho Code.

~~(26)~~ (25) "United States" or "agencies of the United States" includes the United States of America, the natural resources conservation service of the United States department of agriculture, and any other agency or instrumentality, corporate or otherwise, of the United States of America.

SECTION 3. That Section 22-2718, Idaho Code, be, and the same is hereby amended to read as follows:

22-2718. IDAHO STATE SOIL AND WATER CONSERVATION COMMISSION. (1) There is hereby established and created in the department of agriculture of the state of Idaho the Idaho state soil and water conservation commission which shall perform all functions conferred upon it by this chapter and shall be a nonregulatory agency.

(a) The commission shall consist of seven (7) members appointed by the governor from divisions of the Idaho association of soil conservation districts as follows: one (1) member from division I, one (1) member from division II, one (1) member from division III, one (1) member from division IV, one (1) member from division V, one (1) member from division VI, and one (1) at-large member appointed at the governor's discretion.

(b) Commission members shall be chosen with due regard to their demonstrated expertise, including knowledge of conservation districts and their functions, knowledge of production agriculture, knowledge of banking or other similar financial experience, or experience as a county commissioner.

(c) Commissioners serving on July 1, 2022, will be assigned to the divisions that they would represent. On July 1, 2022, current commissioners, at the will of the governor, will be reappointed to the position representing the divisions in which they live.

(d) For divisions that have vacant positions, or divisions with no current commissioner residing there, the division shall submit a list of up to three (3) names for each open commission position. The governor shall appoint commission seats from the list submitted.

(e) The term of each commissioner shall be for five (5) years, with the ability to serve two (2) terms; except that on July 1, 2022, the terms of each commission position will be reset: The term of the commissioners from districts I and IV will be set for two (2) years. The term of the

1 commissioners from districts II and V will be set for three (3) years.
2 The term of the commissioners from districts III and VI and the at-large
3 commissioner will be set for four (4) years. From and after the initial
4 appointment or reappointment, commissioners may serve two (2) full
5 terms of five (5) years, in addition to their initial appointment. From
6 and after the initial appointment, the corresponding division shall
7 provide the list of three (3) names to the governor to choose from on or
8 before July 1 of each year with a vacancy.

9 (f) Each vacancy on the commission shall be filled by appointment by
10 the governor following the guidelines set forth in this subsection. A
11 vacancy that occurs in an unexpired term shall also be filled for its
12 remainder by the governor's appointment following the guidelines set
13 forth in this subsection. Each commissioner appointed to fill an unex-
14 pired term may serve the length of the unexpired term and be eligible to
15 be reappointed for an additional two (2) full terms.

16 (g) All appointments shall be confirmed by the senate. Commission mem-
17 bers shall serve at the pleasure of the governor. The commission may in-
18 vite the state conservationist of the United States department of agri-
19 culture natural resources conservation service, the dean of the uni-
20 versity of Idaho college of agricultural and life sciences or his des-
21 ignated representative, or any other person or entities the commission
22 deems appropriate to serve as nonvoting advisory members of the commis-
23 sion. The commission shall keep a record of its official actions, shall
24 adopt a seal, which seal shall be judicially noticed, and may perform
25 such acts, hold such public hearings, and promulgate such rules as may
26 be necessary for the execution of its functions under this chapter.

27 (2) The state soil and water conservation commission shall appoint
28 the administrator of the state soil and water conservation commission. The
29 state soil and water conservation commission may employ such technical ex-
30 perts and such other agents and employees, permanent and temporary, as it
31 may require, and shall determine their qualifications, duties and compen-
32 sation. The commission may call upon the attorney general of the state for
33 such legal services as it may require. It shall have authority to delegate to
34 its chairman, to one (1) or more of its members, or to one (1) or more agents
35 or employees, such powers and duties as it may deem proper. The commission
36 may establish offices, incur expenses, enter into contracts and acquire
37 services and personal property as may be reasonable for the proper adminis-
38 tration and enforcement of this chapter. Upon request of the commission, for
39 the purpose of carrying out any of its functions, the supervising officer of
40 any state agency, or of any state institution of learning, shall insofar as
41 may be possible under available appropriation, and having due regard to the
42 needs of the agency to which the request is directed, assign or detail to the
43 commission members of the staff or personnel of such agency or institution of
44 learning, and make such special reports, surveys or studies as the commis-
45 sion may request.

46 (3) The commission shall designate its chairman, and may from time to
47 time, change such designation. A majority of the commission shall consti-
48 tute a quorum and the concurrency of a majority in any matter within their
49 duties shall be required for its determination. The chairman and members of
50 the commission shall be compensated as provided by section 59-509(h), Idaho

Code. The commission shall provide for the execution of surety bonds for all employees and officers who shall be entrusted with funds or property; shall provide for the keeping of a full and accurate record of all proceedings and of all resolutions, and orders issued or adopted; and shall provide for a periodic management review of the accounts of receipts and disbursements as determined by the legislative auditor pursuant to section 67-702, Idaho Code.

(4) In addition to the duties and powers hereinafter conferred upon the state soil and water conservation commission, it shall have the following responsibilities:

(a) To offer such assistance as may be appropriate to the supervisors of soil conservation districts in the carrying out of any of their powers and programs.

(b) To keep the supervisors of each of the several soil conservation districts informed of the activities and experience of all other soil conservation districts and to facilitate an interchange of advice and experience between such districts and cooperation between them.

(c) To coordinate the progress of the several soil conservation districts so far as this may be done by advice and consultation.

(d) To secure the cooperation and assistance of the United States and any of its agencies, and of agencies of this state, in the work of such districts.

(e) To disseminate information throughout the state concerning the activities and programs of the soil conservation districts in areas where their organization is desirable.

~~(f) To provide for the establishment and encouragement of the "Idaho OnePlan" as a primary computer-based conservation planning process for all natural resource concerns. Establishment and encouragement will be accomplished through an executive group and steering committee both containing private, state and federal representation. The information provided by those using the "Idaho OnePlan" shall be deemed to be trade secrets, production records or other proprietary information and shall be kept confidential and shall be exempt from disclosure pursuant to section 74-107, Idaho Code.~~

(5) In addition to other powers, functions and duties of soil conservation districts and the state soil and water conservation commission provided in this chapter, the commission shall have the following additional powers, functions and duties:

(a) The commission shall conduct, in cooperation with appropriate federal and state agencies and the owners and operators of privately owned forest lands, rangelands and agricultural lands in this state, conservation improvements on or in respect to these lands for the purposes of implementing conservation systems to conserve and improve natural resource conditions;

(b) The commission shall assist and advise soil conservation districts and other entities in implementing the conservation improvements, projects and the water quality program for agriculture. To the extent that there are available general funds, the commission shall provide for grants and cost-share opportunities and, as legislatively designated, utilize the resource conservation and rangeland development

1 fund for loans for conservation improvements. Provided however, that
2 the commission shall determine whether general or resource conserva-
3 tion and rangeland development funds are available before approving any
4 conservation improvements, projects and cost-share opportunities and,
5 after having made such determination, shall enter into the necessary
6 contracts for implementation;

7 (c) The commission shall be the agency responsible for the administra-
8 tion of funds accruing to the resource conservation and rangeland de-
9 velopment fund and for all general funds appropriated as a separate and
10 distinct action of the legislature to implement the powers, functions
11 and duties of soil conservation districts and the commission;

12 (d) On or before March 1 of each year, the commission shall report to the
13 senate agricultural affairs committee and the house agricultural af-
14 fairs committee; and

15 (e) The commission shall promulgate such rules as are necessary to
16 carry out the purposes of this chapter.

17 SECTION 4. An emergency existing therefor, which emergency is hereby
18 declared to exist, this act shall be in full force and effect on and after
19 July 1, 2026.